



STANDING ORDER NO. HRD/22/2022

RIGHT TO INFORMATION ACT-2005

Whereas it is deemed necessary to lay down a standard procedure to implement different provisions of the Right to Information Act, 2005 by Public Information Officer, APIO and Appellate Authority in different Districts and Units of Delhi Police, the following guidelines are hereby issued.

1. Receiving the applications for seeking information under the Act (Section-6)

- (i) Any person who desires to obtain information under this Act can make an application to the PIO/APIO of the concerned District/Unit.
- (ii) Even if a person makes an oral request, his/her request shall be reduced in writing.
- (iii) Every application made under section 6 shall be accompanied by fees as per Rule 4 and 5 of Right to Information (Regulations of Fee & Cost), Rules, 2005 (copy enclosed).
- (iv) RTI applicant files an RTI application on website <https://rtionline.gov.in>
- (v) Online RTI applications/appeals can be filed at RTI MIS Online Portal by the applicant which has been started since May, 2015.
- (vi) Nodal Officers of Delhi Police can transfer these online RTI applications/appeals to concerned PIOs/FAAs of Delhi Police through online mode.
- (vii) Replies of RTI applications/appeals can be uploaded online at this portal (up to 01 MB) to save the speed post cost and papers.
- (viii) Entry of physically received RTI applications/replies/appeals are also uploaded at this portal.

Note:- Rules in GFRs regarding receiving money on behalf of Government and crediting into Government Accounts

As per Rule 2 of the GFRs, the accounts Officer means:

“The Head of an office of accounts or the Head of a P.A.O. set up under the scheme of departmentalization of accounts.” (Rule-2)

The above definition makes it clear that an Accounts Officer is one who is the Head of an office of accounts.

In the Police Department, Delhi there is no post of Accounts Officer. 'The head of an office of Account' in the various Districts/Units is looked after by the Drawing & Disbursing Officer (DDO), who are the Gazetted Officers of the level of ACP. Hence, these DDOs are the persons looking after accounts work.

As per Rule 22(1) of Receipts & Payments A/Cs, all Government Officers receiving money on behalf of the Govt. shall have to use form GAR-6. Thus, any money received on behalf of government is acknowledged by issue of receipt in form GAR-6 by the DDOs and subsequently deposited into the accredited bank and is duly reflected in receipt scrolls issued by the bank to concerned PAO for reconciliation.

The amount so received by the DDO may be deposited into Revenue Receipt Head-0055-Police Misc.

- (ix) No person shall be required to give any reasons for seeking the information or any other personal details except those that may be necessary for contacting the person making application.
- (x) Where an application is made for an information which is not held by the concerned District/Unit but by some other public authority or a part of which is held by some other public authority or which is more closely connected with the function of any other public authority, such application shall be transferred or such part of the application, as may be appropriate to that other public authority, and inform the applicant immediately about such transfer but in no case later than five days from the date of receipt of the application.

2. Disposal of the request (Section-7)

- (i) Public Information Officer/APIO on receipt of the request Under Section 6 shall as expeditiously as possible and in any case within 30 days of the receipt of the request either provide the information or reject the request for any of the reasons specified in Section 8 & 9 of the Act.
- (ii) Where the information sought for concerns the life or liberty of a person, the same shall be provided within 48 hours of the receipt of the request.
- (iii) PIO/APIO shall charge the fee representing the cost of providing the information and in this regard applicant shall be intimated about the cost.
- (iv) Where the request has been rejected, the PIO shall communicate to the person making the request, the reasons for the rejection, the

period within which an appeal against such rejection may be preferred and the particulars of the Appellate Authority.

- (v) Information sought for shall ordinarily be provided in the form in which it is sought unless it would disproportionately divert the resources of the public authority or would be detrimental to the safety or preservation of the record in question.
- (vi) RTI application number, date and date of its receipt in the public authority.
- (vii) The name, designation, official telephone number and email ID of the CPIO.
- (viii) In case the information requested for is denied, detailed reasons for denial quoting the relevant sections of the RTI Act should be clearly mentioned.
- (ix) In case the information pertains to any other public authority and the application is transferred under section 6(3) of the RTI Act, details of the public authority to whom the application is transferred should be given.
- (x) In the concluding para of the reply, it should be clearly mentioned that the First Appeal, if any, against the reply of the CPIO may be made to the First Appellate Authority within 30 days of receipt of reply of CPIO.
- (xi) The name, designation, address, official telephone number and e-mail ID of the First Appellate Authority should also be clearly mentioned.
- (xii) The information which can be made available to the public may be uploaded on the web portal i.e. www.delhipolice.nic.in. In this regard, a monthly diary in compliance of section 4(1) of RTI Act may be submitted by PIOs of all districts/units to the CPIO of Delhi Police in the first week of every month.
- (xiii) In addition, wherever, the applicant has requested for 'certified copies' of the documents or records, the CPIO should endorse on the document "True copy of the document/record supplied under RTI Act", sign the document with date, above a seal containing name of the officer, CPIO and name of public authority; as enumerated below:

True copy of the document/record supplied under RTI Act.

Sd/-
Date
(Name of the Officer)
CPIO
(Name of the Public Authority)

- (xiv) Further, in case the documents to be certified and supplied are large in number, information on RTI application should be supplied by a designated PIO but the certification of the documents, if need be, could be done by another junior gazetted officer.

3. Section 8: Exemption from disclosure of information

Sub-section 1 Sub-clause(j) (Personal Information):

Hon'ble Supreme Court in its judgment dated 03.10.2012 passed in SLPO (Civil) No. 27734 of 2012 titled Girish Chander Despande v/s CIC & Others held that the details disclosed by a person in his income tax returns are "Personal Information" which stand exempted from disclosure under clause(j) of Section 8(1) of the RTI Act, 2005 unless involves a larger public interest and the CPIO or the SPIO or Appellate Authority is satisfied that the larger public interest justifies the disclosure of such information.

Hon'ble Delhi Court in its judgment dated 06.11.2012 passed in LPA No. 618/2012 titled UPSC V/s RK Jain held that the disciplinary orders and the documents in the course of disciplinary proceedings are personal information within the meaning of Section 8(1)(j) and the disclosure of which normally has no relationship to any public activities or public interest and disclosure of which would cause unwarranted invasion of the privacy of an individual.

4. Severability (Section-10):

Where a part of information cannot be provided due to the exemptions Under Section 8 and/or 9 of the Act but some part can be provided, the PIO shall provide only that much information which is allowed under the Act. In such a case PIO shall inform the applicant that only part of information requested, after severance of the record, is being provided. The reasons for such a decision shall also be given, name and designation of the person giving decision, details of the fee collected for providing such information and the right of the application with respect to the review of the decision regarding non-disclosure of part of the information shall also be communicated to the applicant.

5. Third Party information (Section-11):

Where the information sought intends to disclose any information or record or part of thereof which relates to or has been by a third party and has been treated as confidential by the third party, the PIO shall within five days from the receipt of the request give a written notice to such third party and invite the third party to

make a submission in writing or orally whether the information should be disclosed or not and such submission of the third party shall be kept in view while taking a decision about disclosure of information. The third party shall within 10 days from the date of receipt of the notice from PIO, be given the opportunity to make representation against the proposed disclosure. After the representation of the third party, the PIO shall make a decision as to whether or not disclose the information or record or part thereof and give in writing the notice of his decision to the third party. Third party has a right to prefer an appeal against such decision.

6. Monitoring and reporting (Section -25):

Each PIO in relation to his District/Unit shall collect and provide such information to Police Hdqrs. as is required to prepare annual report Under Section 25 of the Act. Each report shall state in respect of the year to which the report relates:-

- The number of requests made to each public authority.
- The number of decisions where applicants were not entitled to access to the documents pursuant to the requests, the provisions of this Act under which these decisions were made and the number of times such provisions were invoked;
- The number of appeals referred to the Central Information Commission or State Information Commission, as the case may be, for review, the nature of the appeals and the outcome of the appeals,
- Particulars of any disciplinary action taken against any officer in respect of the administration of this Act;
- The amount of charges collected by each public authority under this Act;
- Any facts which indicate an effort by the public authorities to administer and implement the spirit and intention of this Act;
- Recommendation for reform, including recommendations in respect of the particular public authorities, for the development, improvement, modernization, reform or amendment to this Act or other legislation or common law or any other matter relevant for operationalising the right to access information.

7. Maintenance of records:

- (i) Every PIO/APIO shall maintain a register for entering the details of the application, for example, name of the applicant, date of the

application, subject matter of the application, information sought in the application and the final disposal of the application.

- (ii) Public Information Officer of Police Hdqrs. shall compile all the reports received from Districts/Units and shall prepare a report for entire Delhi Police for its onward transmission to State Information Commission after the approval of Head of the Department.

8. Transparency Officer:

- (i) The information in compliance with Section 4 obligation by public authorities shall be uploaded on a portal to be set up exclusively for this purpose by the CIC.
- (ii) Within 30 days of this order, each public authority shall designate one of their senior officers as "TRANSPARENCY OFFICER" (with all necessary supporting personnel), whose task will be:-
 - (a) to oversee the implementation of the Section 4 obligation by public authorities, and to apprise the top management of its progress.
 - (b) to be the interface for the CIC regarding the progress of (a).
 - (c) help promote congenial conditions for positive and timely response to RTI-requests by CPIOs, deemed CPIOs.
 - (d) to be a contact point for the public in all RTI-related matters.

In compliance of the above directions, the Transparency Committee of Delhi Police headed by Joint CP/HQ, as Chairman & Joint CP/Technology & Project Implementation and DCP/HQ-II as its members is constituted.

9. Removal of doubts

Wherever there is any doubt, Hon'ble CIC's orders/directions issued from time to time regarding supply of information to the applicant/appellant (<https://cic.gov.in/decision>), the provisions of Right to Information Act, 2005 and Right to Information (Regulation of Fee & Cost) Rules, 2012 shall be referred to.

10. SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No.316/2005 issued vide No.52502-601/C&T(AC-I/PHQ dated 18.10.2005.

11.DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

26.5.22

No. *27101-27250*/Record Branch/PHQ dated Delhi, the *26/5/22*

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.